



CHAPTER xxv.

An Act to authorise the Undertakers of the Aire and Calder Navigation to construct a diversion of the Dutch River at Goole to increase rates tolls and charges leviabie by the Undertakers and to confer other powers on the Undertakers in relation to their undertaking.

A.D. 1925.

[28th May 1925.]

WHEREAS by the Act 10 & 11 William III. Cap. XIX. and various other Acts (local and personal) powers for making and keeping navigable the rivers of Aire and Calder in the county of York and for constructing and maintaining certain canals and other works in that county including docks at the port of Goole and other powers have been conferred on the Undertakers of the Aire and Calder Navigation (hereinafter referred to as "the Undertakers") :

And whereas under and by virtue of the Ouse (Lower) Improvement Act 1884 the Undertakers are conservators of the lower portion of the River Ouse in the said county of York :

And whereas for the purposes of and in connection with certain improvements of their docks at Goole proposed to be carried out by the Undertakers it is expedient that they should be authorised to construct the diversion of a part of the Dutch river in the parish and urban district of Goole described in this Act :

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And whereas with a view to the extension for the convenience of shipping of the jetty on the lower portion of the River Ouse known as Blacktoft jetty it is expedient that the right of road or access to the said river for loading and unloading purposes over the property of the Undertakers lying between the village of Blacktoft and the left bank of the said river adjoining the said jetty as at present existing should be extinguished and that the agreement relating to such right of road or access set forth in the schedule to this Act should be confirmed :

And whereas the Undertakers by virtue of the powers conferred upon them by the Canal Rates Tolls and Charges (Navigation of the Rivers Aire and Calder) Order 1893 confirmed by the Canal Rates Tolls and Charges (Navigation of the Rivers Aire and Calder) Order Confirmation Act 1893 are empowered to charge rates tolls and charges not exceeding those specified in the schedule to the said Order :

And whereas the rates tolls and charges so authorised to be taken by the Undertakers as aforesaid have been increased by direction of the Minister of Transport under the Ministry of Transport Act 1919 :

And whereas the powers of the Undertakers to charge such increased rates tolls and charges will cease on the fifteenth day of February one thousand nine hundred and twenty-six :

And whereas in order to enable the Undertakers thereafter to levy and make adequate rates tolls and charges in respect of the canals and navigations belonging to the Undertakers or for the use of which they are entitled to charge tolls it is expedient that the rates tolls and charges authorised by the said Order of 1893 should be increased to the extent specified in this Act :

And whereas it is expedient that the Undertakers should be authorised to borrow further money for the purposes of this Act and for the general purposes of their undertaking :

And whereas it is expedient that the other powers contained in this Act should be conferred on the Undertakers :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and

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plans of the lands which may be taken for the purposes or under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the west riding of the county of York and are in this Act referred to as the deposited plans sections and book of reference respectively :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Aire and Calder Short title,
 Navigation Act 1925.

2. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof as respectively amended by any subsequent Act are so far as the same are applicable for the purposes of and are not varied by or inconsistent with this Act incorporated with and form part of this Act.

Incorporation of Acts.

3. In this Act unless there be something in the subject or context repugnant to such construction—

Interpretation.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act have the same respective meanings; and

The expression “the Undertakers” means the Undertakers of the Aire and Calder Navigation;

The expression “the trustees” means the trustees of the Aire and Calder Navigation;

The expression “the Navigation” means the Aire and Calder Navigation;

The expression “the Canal Charges Order” means the Canal Rates Tolls and Charges (Navigation

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of the Rivers Aire and Calder) Order 1893 confirmed by the Canal Rates Tolls and Charges (Navigation of the Rivers Aire and Calder) Order Confirmation Act 1893; and

The expression "the Act of 1884" means the Ouse (Lower) Improvement Act 1884.

In the Acts wholly or partially incorporated with this Act—

The expressions "the company" "the Undertakers" and "the promoters of the undertaking" and other like expressions mean the Undertakers;

The expressions "railway" "work" and "the undertaking" mean the new channel or diversion of the Dutch river and the works connected therewith by this Act authorised and the expression "centre of the railway" in the provisions of the Railways Clauses Consolidation Act 1845 incorporated with this Act means any part of such works.

Power to
execute
works.

4. Subject to the provisions of this Act the Undertakers may make and maintain in the lines and according to the levels shown on the deposited plans and sections the new channel or diversion of the Dutch river in the parish and urban district of Goole in the west riding of the county of York hereinafter described together with all necessary and convenient drains culverts arches training and other walls dams embankments floodbanks fitting out jetties groynes dolphins moorings buoys lights beacons grids slipways cranes roads fences approaches and other works and conveniences in connection with and incidental thereto respectively and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes.

The work hereinbefore referred to and authorised by this Act is :—

A new channel one furlong and six chains in length to form a diversion of part of the existing channel of the Dutch river commencing by a junction with the said river at a point two hundred and twenty-one yards or thereabouts measured in an easterly direction from the eastern side of the bridge over the said river known as the Old

Goole Bridge and terminating at a point one hundred and twenty-eight yards or thereabouts from the southern end of the South Pier at Goole measured in a southerly direction along an imaginary line drawn across the said river at its confluence with the River Ouse Provided that none of the aforesaid subsidiary works shall be made or maintained below high-water mark of ordinary spring tides in or about the said new channel or diversion of the Dutch river so as in any way to prejudicially interfere with the free flow of water in through or along such new channel or in through or along the existing river channel of the Dutch river above such new channel except such interference as may be occasioned by the construction and maintenance of a jetty in substitution for the existing jetty numbered 8 on the deposited plans the face line of such substituted jetty not to extend further into the river than a line drawn in a westerly direction in continuation of the face line of the existing jetty as shown on the deposited plans and no part of such substituted jetty shall be constructed eastwards of the sewer outfall numbered 6 on the deposited plans. A.D. 1925.

5. Subject to the provisions of this Act and without prejudice to the rights of the Undertakers under any other Act or any deed or agreement the Undertakers may within the limits of deviation of the works authorised by this Act shown on the deposited plans temporarily or permanently cross open up break up divert alter alter the position of stop up remove or otherwise interfere with any watercourses sewers drains culverts river walls floodbanks sluices staiths piers fitting out or other jetties landings wharves quays moorings groynes gas and water mains and pipes telegraphic telephonic electric and other wires posts and apparatus and other works so far as may be necessary for the purposes of the said works the Undertakers before interrupting the supply or flow of gas water or sewage providing or causing to be provided to the reasonable satisfaction of the parties responsible therefor proper substitutes Provided that in the exercise of the powers of this section the Undertakers shall do as little damage as may be and shall subject and without prejudice as aforesaid make

Subsidiary
powers.

A.D. 1925. full compensation to all parties entitled thereto for all damage sustained by reason of the exercise of such powers the amount thereof to be determined in the manner prescribed by the Lands Clauses Acts for settling cases of disputed compensation Provided also that nothing in this section shall extend to authorise any interference with any telegraphic line (as defined by the Telegraph Act 1878) or other property of His Majesty's Postmaster-General and that nothing in this section shall extend to authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Act 1882 otherwise than in accordance with the provisions of section 15 of that Act.

Power to
dredge.

6. The Undertakers may deepen dredge scour cleanse alter and improve the bed channel and foreshores of the Dutch river and of the River Ouse adjoining the works by this Act authorised and remove any sand shingle mud soil rock shoals or other material which may interfere with the access to the said works and use appropriate and dispose of any materials so dredged or removed or which may be obtained in the construction of the said works Provided that no sand shingle mud soil rock or other material shall be laid down or deposited in any place below high-water mark of ordinary spring tides without the consent in writing of the Board of Trade having been first obtained Nothing herein contained shall be deemed to authorise in relation to any foreshore or bed of the River Ouse vested in the Crown and adjoining the works by this Act authorised the removal or sale of any sand mud or other materials by the Undertakers or their licensees otherwise than to the extent hereinbefore mentioned.

Limits of
deviation.

7. In constructing the works by this Act authorised the Undertakers may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding five feet upwards or downwards Provided that no such lateral deviation shall have the effect of reducing the width of the new channel or diversion of the Dutch river from that shown on the deposited plans and sections and that no vertical deviation shall be carried out so as to have the effect

of raising the bottom of the said new channel or diversion above the level shown on the deposited sections Provided further that no deviation either lateral or vertical below high-water mark of ordinary spring tides shall be made without the consent in writing of the Board of Trade. A.D. 1925. —

8.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun. Works below high-water mark to be subject to approval of Board of Trade.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Undertakers and the amount of such cost shall be a debt due from the Undertakers to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

9.—(1) The Undertakers shall at or near such part of the works by this Act authorised as shall be below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time require or approve. Lights on works during construction.

(2) If the Undertakers fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

10.—(1) After the completion of the works by this Act authorised the Undertakers shall at the outer extremity Permanent lights on works.

A.D. 1925. of those works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House of Deptford Strond shall from time to time direct.

(2) If the Undertakers fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Cables &c.
on under
or over
tidal
waters or
tidal lands.

11. Notwithstanding anything in this Act any cables pipes or wires to be laid or placed under the powers of this Act by the Undertakers on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides shall be laid or placed at such depth under or such height over the tidal waters or tidal lands as the Board of Trade may require.

Survey of
works by
Board of
Trade.

12. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Undertakers under the powers of this Act which shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Undertakers shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Undertakers to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Provision
against
danger to
navigation.

13.—(1) In case of injury to or destruction or decay of the works by this Act authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Undertakers shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to the Corporation for directions as to the means to be taken.

(2) If the Undertakers fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. A.D. 1925.

14.—(1) Where any work constructed by the Undertakers under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bed arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing require the Undertakers at their own expense either to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper. Abatement of work abandoned or decayed.

(2) Where any part of such work is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore or the proper and efficient user of the foreshore the Board of Trade may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Undertakers they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Undertakers and the amount of such expense shall be a debt due from the Undertakers to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

15. Every person who wilfully obstructs any person acting under the authority of the Undertakers in setting Penalty for obstructing works.

A.D. 1925. — out the lines of the works by this Act authorised or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of such works shall for every such offence be liable on summary conviction to a penalty not exceeding five pounds in addition to the payment to the Undertakers of the amount of any damage caused.

Power to
divert
Dutch
river.

16.—(1) From and after the completion of the new channel of the Dutch river by this Act authorised the Undertakers may divert into the said new channel the waters of the Dutch river and from and after such diversion all rights of drainage and navigation and other rights over and along the portion of the existing river channel between the points of commencement and termination of the new channel shall cease and be extinguished.

(2) From and after such completion and diversion as aforesaid the said new channel between the points aforesaid shall be the channel of the Dutch river in substitution for the portion of the existing river channel between those points and shall be subject to the provisions of all Acts and Orders and of all conveyances agreements or other deeds or documents affecting the existing river channel between the said points. Provided that the said new channel and the bed banks and foreshores thereof shall after such completion and diversion as aforesaid be maintained and repaired by and at the expense of the Undertakers.

(3) From and after such completion and diversion as aforesaid the existing river channel between the points of commencement and termination of the said new channel shall by virtue of this Act be vested in the trustees as part of the estate of the Undertakers and the Undertakers may fill up and use the same for any of the purposes of their undertaking.

Period for
completion
of works.

17. If the works by this Act authorised are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Undertakers for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

18. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Undertakers after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the west riding of the county of York for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the west riding of the county of York and a duplicate thereof shall also be deposited with the clerk of the council of the urban district of Goole and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk of the council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Undertakers to take the lands and execute the works in accordance with such certificate.

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Correction
of errors in
deposited
plans and
book of
reference.

19. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Undertakers of the powers of this Act it may happen that a portion only of the property shown and numbered 11 on the deposited plans (hereinafter in this section referred to as "the said property") will be sufficient for the purposes of the Undertakers and that such portion or some other portion less than the whole can be severed from the remainder of the said property without material detriment thereto Therefore the following provisions shall have effect:—

Owners
may be
required to
sell parts
only of
certain
lands and
buildings.

- (1) If for twenty-one days after the service of notice to treat in respect of a specified portion of the said property the owner (which expression means and includes for the purposes of this section the owners and lessees of and other persons interested in the said property) shall fail to notify in writing to the Undertakers that he alleges that such portion cannot be

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severed from the remainder of the said property without material detriment thereto he may be required to sell and convey to the Undertakers such portion only without the Undertakers being obliged or compellable to purchase the whole the Undertakers paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (2) If within such twenty-one days the owner shall by notice in writing to the Undertakers allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the said property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Undertakers have compulsory powers of purchase) can be so severed :
- (3) If the tribunal determine that the portion of the said property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Undertakers the portion which the tribunal shall have determined to be so severable without the Undertakers being obliged or compellable to purchase the whole the Undertakers paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (4) If the tribunal determine that the portion of the said property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal

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may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :

- (5) If the tribunal determine that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Undertakers may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (6) If the tribunal determine that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Undertakers in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that the said property or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

20. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this

Persons
under dis-
ability may

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—
grant ease-
ments &c.

Act grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

As to
private
rights of
way over
lands
taken com-
pulsorily.

21. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Undertakers shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to
Under-
takers to
enter upon
property
for survey
and
valuation.

22. The Undertakers and their surveyors officers contractors and workmen may from time to time at all reasonable times in the daytime upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Costs of
arbitration
in certain
cases.

23. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Undertakers award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Undertakers by the claimant giving sufficient particulars and in sufficient time to enable the Undertakers to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Undertakers have been prejudiced thereby the tribunal shall have power to decide whether the

claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Undertakers to amend the statement in writing of the claim delivered by him to the Undertakers in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Undertakers if they object to the amendment and such amendment shall be subject to such terms enabling the Undertakers to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this enactment.

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24. In settling any question of disputed purchase money or compensation under this Act the tribunal settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the fourteenth day of November one thousand nine hundred and twenty-four if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently altered building.

25. In all cases of disputed compensation arising under this Act in respect of land to be taken compulsorily or otherwise or of injurious affection of land which fall to be determined under the provisions of the Lands Clauses Acts it shall unless the Undertakers and the other party or parties to the dispute concur in the appointment of a single arbitrator pursuant to the said Acts be in the power of the Undertakers or such other party or parties to apply to the Board of Trade to appoint a single arbitrator to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbitrators

Single arbitrator.

A.D. 1925. — umpires justices or jury acting under the Lands Clauses Acts The said arbitrator upon appointment shall be deemed to be a single arbitrator within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly.

Period for compulsory purchase of lands. **26.** The powers of the Undertakers for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Property to stand vested in trustees. **27.** All lands purchased taken or used and all buildings works and property erected or acquired by virtue of the powers of this Act for the purposes of or in connection with the works by this Act authorised and works connected therewith shall subject to the provisions of this Act stand vested in trust for those purposes of this Act in the trustees with the like indemnification as the property in the Navigation is by virtue of the Acts heretofore passed relating to the Navigation vested in the trustees.

Confirmation of agreement as to right of road or access at Blacktoft. **28.** The agreement set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto and upon the Undertakers and upon all other persons having or claiming to have the right of road or access to the River Ouse over the property of the trustees in the parish of Blacktoft referred to in the said agreement and as on and from the date on which the trustees shall have provided a substituted access to the said river in accordance with the said agreement the said existing right of road or access shall cease and be extinguished.

Increase of rates tolls and charges. **29.** On and from the sixteenth day of February one thousand nine hundred and twenty-six the maximum rates and terminals specified in Part I. of Table "A" in the schedule to the Canal Charges Order are hereby increased by an amount equal to sixty per centum of the respective amounts thereof authorised by the said Order and on and from the same date the maximum tolls and wharfage charges specified in Part II. of Table "A" in the said schedule and the minimum toll and empty boat charge specified in section 12 of the said Order are hereby increased by an amount equal to fifty per centum of the respective amounts thereof authorised by the said Order and the said Order shall

be read and have effect accordingly Provided that A.D. 1925.
unless and except so far as Parliament may hereafter
otherwise allow the provisions of this section shall
cease to have effect on the expiration of ten years from
the passing of this Act.

30.—(1) If at any time it is represented in writing to the Minister of Transport (hereinafter in this section referred to as “the Minister”):— Revision of
rates tolls
and
charges.

(a) By any chamber of commerce or shipping or representative body of traders or any person who is in the opinion of the Minister a proper person for the purpose; or

(b) By the Undertakers;

that under the circumstances then existing all or any of the rates tolls and charges authorised in pursuance of this Act should be revised the Minister may if he thinks fit at any time after the fifteenth day of February one thousand nine hundred and twenty-six make an order revising all or any of such rates tolls and charges as aforesaid and may fix the date as from which such order shall take effect and thenceforth such order shall be observed until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) No application may be made under this section for a general revision of the rates tolls and charges for the time being authorised under this Act within twelve months after the date of an order made by the Minister for a general revision thereof and no application may be made for a revision of any particular rate toll or charge within twelve months after the date of an order made by the Minister for a general revision of the said rates tolls and charges or of any previous application for a revision of the particular rate toll or charge in question.

(3) The provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section (a) as if the Minister were referred to therein in lieu of the Board of Trade (b) as if the

A.D. 1925. — person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874 and (c) as if in section 4 of the said Act of 1874 the words “under the seal of the Minister of Transport” were substituted for the words “by writing under the hand of the President or of one of the secretaries of the Board.”

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

Power to appropriate lands.

31. The Undertakers may appropriate and use for the purposes of this Act any lands belonging to or vested in them or the trustees at the date of the passing of this Act.

Application of funds of Undertakers.

32. The Undertakers may apply to the purposes of this Act any funds or capital belonging to or authorised to be raised or borrowed by them which are not required for the purposes for which the same were authorised to be raised or directed to be applied.

Additional borrowing powers.

33.—(1) In addition to the money which the Undertakers are by the Acts relating to the Undertakers authorised to raise on mortgage or by the creation and issue of debenture stock the Undertakers may borrow—

(a) on mortgage of their undertaking in manner prescribed by those Acts; or

(b) with the sanction of three-fourths of the votes of the Undertakers entitled to vote in that

behalf at general assemblies of the Undertakers present (personally or by proxy) at a special general assembly specially convened for that purpose by the creation and issue of debenture stock of such nominal value as shall be sufficient to raise at the price at which the same shall be issued. A.D. 1925.

sums not exceeding in the whole three hundred thousand pounds.

(2) The provisions of sections 71 to 80 and 82 to 94 inclusive of the Act of 1884 shall *mutatis mutandis* and subject as hereinafter provided apply to debenture stock created and issued under the authority of this Act:

Provided as follows—

- (a) Notwithstanding anything contained in section 71 (Debenture stock may be created) or in section 73 (Undertakers may redeem debenture stock) of the Act of 1884 the Undertakers may issue any debenture stock which they are by the Act of 1884 or by this Act authorised to create and issue so as to be redeemable at such times and in such manner and on and subject to such terms and conditions and to bear such rate or rates of dividend or interest as the directors of the Undertakers may at the time of the issue thereof determine:
- (b) Section 82 (Holders of debenture stock not to vote) of the Act of 1884 shall in relation to debenture stock issued under the authority of this Act as redeemable at a certain date be read and take effect as if for the words “the date mentioned in the notice given by the Undertakers of their intention to redeem the same as the date of redemption thereof” occurring in that section there were substituted the words “maturity thereof.”

34. Nothing herein contained shall in any way affect any mortgage or note at any time legally granted by the Undertakers before the passing of this Act but the holders of all such mortgages and notes shall during the continuance thereof respectively be entitled to the Mortgages &c. not to be affected.

A.D. 1925. — same priorities rights and privileges in all respects as they would have been entitled to if this Act had not been passed.

Certain
expenditure
may be
debited to
Lower Ouse
improve-
ment capital
account.

35. Money expended by the Undertakers under this Act or the agreement set forth in the schedule to this Act in connection with the right of road or access at Blacktoft referred to in that agreement or such proportion thereof as the Undertakers think reasonable may be carried by them to the debit of the Lower Ouse improvement capital account and the provisions of the Act of 1884 which relate to money disbursed on capital account for the purposes of or under that Act shall apply to expenditure carried to the debit of that account under the authority of this Act.

Crown
Rights.

36. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Undertakers to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Costs of
Act.

37. The costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Undertakers and such proportion thereof as the Undertakers think reasonable may be carried to the debit of the Lower Ouse improvement capital account.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1925.

THIS INDENTURE made the thirty-first day of December one thousand nine hundred and twenty-four Between the TRUSTEES of the AIRE and CALDER NAVIGATION (hereinafter called "the Navigation Trustees") of the one part and the Reverend ALLAN DANSON RIGBY of the Vicarage Blacktoft Howden in the county of York Master of Arts Clerk in Holy Orders and chairman of the Blacktoft Parish Council HERBERT JOHN WINN of Staddlethorpe Grange Gilberdyke Brough in the said county farmer GEORGE WILLIAM TAYLOR of South Farm Blacktoft aforesaid farmer GEORGE WILLIAM REED of North Farm Blacktoft aforesaid farmer BENTLEY WILLIAMSON of Waterside House Metham Howden aforesaid farmer JAMES DRURY of Blacktoft aforesaid joiner and wheelwright ROBERT ANDERSON SMITH of Blacktoft House Blacktoft aforesaid farmer ROBERT JOHN HALL of Blacktoft aforesaid blacksmith JAMES TAYLOR of Gowthorpe Blacktoft aforesaid farmer and THOMAS WILLIAM ROBINSON of Blacktoft aforesaid farmer members of the said parish council (hereinafter called "the Parish Council") of the other part.

STAMP.

Ten
shillings.

WHEREAS the Navigation Trustees are the owners of a jetty on the lower portion of the River Ouse known as Blacktoft Jetty in the parish of Blacktoft in the county of York and they are desirous of extending such jetty in a westerly direction :

And whereas the inhabitants or ratepayers of the said parish of Blacktoft are or claim to be entitled to a right of road or access to the said river for loading and unloading purposes over the property of the Navigation Trustees which will be cut off by the proposed extension of the said jetty and it is accordingly necessary that such right of road or access shall be abandoned and extinguished :

And whereas the Navigation Trustees have agreed with the Parish Council as representing the inhabitants and ratepayers of the said parish of Blacktoft that the said existing right

A.D. 1925. of road or access to the said river shall be permanently abandoned and extinguished and that in lieu and full discharge thereof the Navigation Trustees shall provide and make a new road of access to and from the said river with the frontage and space for turning vehicles hereinafter mentioned over and on land recently acquired by them from Mrs. Rebecca Ann Parker to the east of the said jetty and in a straight line with the highway leading to Staddlethorpe :

Now these presents witness and it is hereby agreed by and between the Navigation Trustees and the Parish Council in manner following that is to say :—

1. The Undertakers of the Aire and Calder Navigation shall in the next session of Parliament apply to Parliament for and use their best endeavours to obtain an Act providing that the existing right of road or access to the River Ouse at Blacktoft over the property of the Navigation Trustees for loading and unloading goods shall cease and be extinguished as on and from the date on which the Navigation Trustees shall have provided a substituted road of access to the said river in accordance with the provisions of this agreement.

2. The Navigation Trustees shall begin the construction of and complete a substituted road of access to and from the said river with a frontage to the said river of not less than eighty feet and with adequate space on the inside of the river bank for loading unloading and tipping purposes and for the turning of vehicles over and on land recently acquired by them from Mrs. Rebecca Ann Parker to the east of the said jetty and in a straight line with the highway leading to Staddlethorpe without any unnecessary delay after the passing of the Act and after the completion thereof the said substituted road of access shall be maintained by the Navigation Trustees.

3. From and after the completion of the said substituted road of access and at all times thereafter the inhabitants or ratepayers of the parish of Blacktoft and all other parties now entitled to or to use the existing road of access or who would have been entitled to or to use such existing road of access if the same had been continued shall have the right to use the substituted road of access for loading and unloading purposes free of all landing wharfage tolls dues or charges payable to the Undertakers but nothing in this agreement shall exempt any vessels passing along the River Ouse within the limits of improvement as defined by the Ouse (Lower) Improvement Act 1884 or any animals goods or articles contained therein from payment of the river tolls rates or charges authorised by the said last mentioned Act or any other tolls rates or charges (except as aforesaid) payable to the Undertakers or authorise any vessels of any description to lie or be moored at the said road of access

in such manner as to interfere with the navigation of the river by other vessels or exempt any traffic or vessels or persons in charge thereof using such road of access from being subject to the byelaws for the time being in force for the regulation of the River Ouse and the works thereof and the traffic on such river.

A.D. 1925.

4. From and after the completion of the said substituted road of access as aforesaid all the claims rights property and interest of the inhabitants or ratepayers of the parish of Blacktoft in or to the existing road of access and of all other parties now entitled to or to use the same or would have been entitled to or to use such existing road of access if the same had been continued shall cease and be extinguished and the land over which such right of road or access now exists shall thereafter be freed and discharged from all such claims rights property and interest.

5. This agreement shall be scheduled to the Bill to be applied for in the next session by the said Undertakers and confirmation by Parliament thereof sought so as to make the same binding upon the inhabitants and ratepayers of the parish of Blacktoft and all other parties interested in the present right of road or access for loading and unloading purposes or if the said Undertakers so desire the arrangement herein contained may instead thereof be embodied in and sanctioned by clauses in such Bill and such Bill may also contain such clauses and provisions in relation to the construction of the new substituted road of access the vesting of the land over which the present right of road or access exists in the said Undertakers or their trustees freed as aforesaid and such other clauses and provisions as the said Undertakers may deem necessary or expedient provided the same are not inconsistent with the arrangements contained in this agreement.

6. The Parish Council shall support the application for and assist the said Undertakers in obtaining from Parliament the above mentioned powers and provisions and the confirmation of this agreement or the sanction to the arrangement herein contained but they shall not be required to incur any legal or other expenses in connection with such support and assistance.

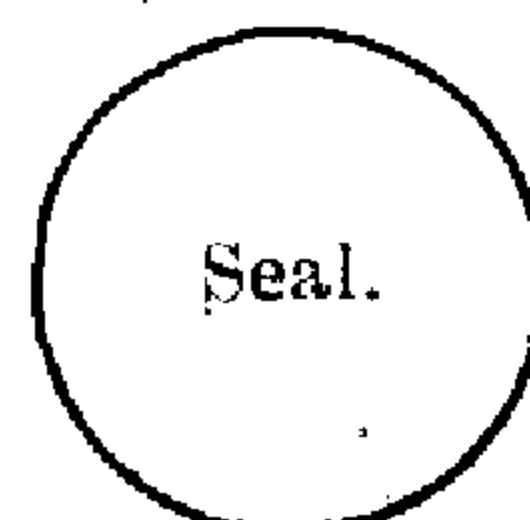
7. If the said Undertakers do not in the next or the next following session of Parliament obtain the necessary powers to abandon and extinguish the existing right of road or access in accordance with this agreement and obtain such confirmation of this agreement or sanction to the arrangement herein contained as aforesaid the rights of the inhabitants and ratepayers of the parish of Blacktoft and of all other parties interested as aforesaid shall revive and this agreement (except as to this clause) shall cease to be in force.

8. This agreement is subject to such alterations as Parliament may think fit to make therein but if Parliament shall make

A.D. 1925. any material alteration therein and such alteration shall not be
— accepted by the parties hereto it shall be competent to either
party hereto to withdraw from the same.

In witness whereof the Navigation Trustees have hereunto
caused their common seal to be affixed and the said parties
hereto of the other part have hereunto set their hands and seals
the day and year first hereinbefore written.

The common seal of the Trustees
of the Aire and Calder Naviga-
tion was hereunto affixed in
the presence of



W. W. WARDE-ALDAM
Trustee.

LISTER HORN
Secretary.

Signed sealed and delivered by	A. D. RIGBY.	(L.S.)
the said ALLAN DANSON RIGBY	H. J. WINN.	(L.S.)
HERBERT JOHN WINN GEORGE	G. W. TAYLOR.	(L.S.)
WILLIAM TAYLOR GEORGE	G. W. REED.	(L.S.)
WILLIAM REED BENTLEY	B. WILLIAMSON.	(L.S.)
WILLIAMSON JAMES DRURY	J. DRURY.	(L.S.)
ROBERT ANDERSON SMITH	R. A. SMITH.	(L.S.)
ROBERT JOHN HALL JAMES	R. J. HALL.	(L.S.)
TAYLOR and THOMAS WILLIAM	J. TAYLOR.	(L.S.)
ROBINSON in the presence of	T. W. ROBINSON.	(L.S.)

R. J. HAMLET
Clerk to the Blacktoft Parish Council
Blacktoft
Howden
Yorks.

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